

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shevani Patel	Team: Squad #03	CCRB Case #: 201412268	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/03/2014 11:24 PM, Thursday, 12/04/2014 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/3/2016	Precinct: 61		
Date/Time CV Reported Mon, 12/08/2014 2:17 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 12/09/2014 2:17 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eumir Ferrer	21359	943232	PSA 1
2. POM Frank Gambina	29527	932683	PSA 1

Officer(s)	Allegation	Investigator Recommendation
A . POM Eumir Ferrer	Abuse: PO Eumir Ferrer questioned § 87(2)(b)	A . Substantiated
B . POM Frank Gambina	Abuse: PO Frank Gambina questioned § 87(2)(b)	B . Substantiated
C . POM Eumir Ferrer	Abuse: PO Eumir Ferrer questioned § 87(2)(b)	C . Substantiated
D . POM Frank Gambina	Abuse: PO Frank Gambina questioned § 87(2)(b)	D . Substantiated
E . POM Eumir Ferrer	Force: PO Eumir Ferrer used physical force against § 87(2)(b)	E . Exonerated
F . POM Eumir Ferrer	Discourtesy: PO Eumir Ferrer acted discourteously toward § 87(2)(b)	F . Unfounded
G . POM Eumir Ferrer	Abuse: PO Eumir Ferrer issued a summons to § 87(2)(b)	G . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On December 8, 2014, § 87(2)(b) filed this complaint with IAB via telephone, which generated log #14-39686 and was subsequently referred to the CCRB on December 9, 2014.

On December 3, 2014, at 11:24 p.m., after visiting their friend who resides in the building, § 87(2)(b) and § 87(2)(b) stood in the lobby of § 87(2)(b) a NYCHA building in Brooklyn, hugging and kissing each other for less than ten minutes. Then, PO Eumir Ferrer and Frank Gambina of PSA1 approached § 87(2)(b) and § 87(2)(b). PO Ferrer asked § 87(2)(b) and § 87(2)(b) what they were doing in the building. § 87(2)(b) replied she and § 87(2)(b) had been visiting a friend and that she and § 87(2)(b) were just saying goodbye to each other. PO Ferrer informed them they were trespassing, and asked § 87(2)(b) and § 87(2)(b) for their identification (**Allegations A, B, C and D**). § 87(2)(b) took her phone out to call her friend. PO Ferrer allegedly snatched the phone from § 87(2)(b)'s hand three times (**Allegation E**). § 87(2)(b) identification was returned to him but the officers held onto § 87(2)(b)'s. The officers called for additional units to respond and § 87(2)(b) called 911 to file a complaint with IAB. § 87(2)(b) proclaimed she was going outside to smoke a cigarette and when she opened the front door to step outside, PO Ferrer gave § 87(2)(b) a small shove with his hands on her shoulders to make her return into the building (**Allegation F**). PO Ferrer issued § 87(2)(b) a summons for disorderly conduct (**Allegation G**). § 87(4-b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

There is no video footage associated with this case.

Mediation, Civil and Criminal Conviction Histories

- On December 16, 2014, mediation was offered to and rejected by § 87(2)(b) [BR 01].
- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 19, 2015 with regard to the incident.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following CCRB complaints [BR 03]:
 - § 87(2)(b)
- § 87(2)(b) has never filed a complaint with the CCRB [BR 03].
- PO Eumir Ferrer has been a member of the service for 8 years and has two prior CCRB cases involving five allegations, none of which were substantiated.
- PO Frank Gambina has been a member of the service for 12 years and has four prior CCRB cases involving six allegations, none of which were substantiated.

Finding and Recommendations

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Recommendations

- **Allegation A – Abuse of Authority: PO Eumir Ferrer questioned** § 87(2)(b) [REDACTED]
- **Allegation B – Abuse of Authority: PO Frank Gambina questioned** § 87(2)(b) [REDACTED]
- **Allegation C – Abuse of Authority: PO Eumir Ferrer questioned** § 87(2)(b) [REDACTED]
- **Allegation D – Abuse of Authority: PO Frank Gambina questioned** § 87(2)(b) [REDACTED]

§ 87(2)(b) [REDACTED] admitted that she and § 87(2)(b) [REDACTED] were “hugging and kissing” in the lobby of § 87(2)(b) [REDACTED] W for under ten minutes prior to the officers’ arrival. The officers approached them and asked if they knew who had called 911 for officers to respond. When § 87(2)(b) [REDACTED] informed the officers she did not know, PO Ferrer asked § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] what they were doing in the building. § 87(2)(b) [REDACTED] replied that she and § 87(2)(b) [REDACTED] had been upstairs visiting a friend. When PO Ferrer asked § 87(2)(b) [REDACTED] who her friend in the building was, § 87(2)(b) [REDACTED] informed the officer she did not have to say who her friend was or where she was coming from. PO Ferrer informed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] they were trespassing. § 87(2)(b) [REDACTED] argued she had just been saying goodbye to § 87(2)(b) [REDACTED] and noted that they still had their hands on each other. PO Ferrer asked § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] for their identification, which they provided. PO Ferrer continued to ask § 87(2)(b) [REDACTED] who her friend was.

On December 11, 2015, PO Ferrer was interviewed at the CCRB. He stated that while patrolling the NYCHA complex inside of their vehicle, he and PO Gambina observed § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] standing inside of the lobby of a building, leaning against the wall. There were no radio runs or 911 calls from this building. After watching them for less than five minutes, the officers went inside of the building to determine whether they lived there or had a right to be there. PO Ferrer requested their identification and asked if they lived in the building. § 87(2)(b) [REDACTED] provided his identification, while § 87(2)(b) [REDACTED] refused several of PO Ferrer’s requests, stating that she knew many people in the building. PO Ferrer requested to know an apartment number of the tenant she was visiting, but she refused to give him any information.

On December 10, 2015, PO Gambina was interviewed at the CCRB. § 87(2)(g) [REDACTED] They approached § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] after watching them for one minute. PO Ferrer initially asked § 87(2)(b) [REDACTED] what she was doing in the lobby and if she lived there. She said that she was hanging out and did not live there, but was visiting a person whose name and apartment number she refused to provide.

The event documents did not reveal any 911 calls for the location.

Officers are allowed to approach an individual and inquire about basic, nonthreatening matters such as name, address, and destination if they have an articulable reason to do so; the reason need

not be indicative of criminality. Individuals may not be selected for questioning based on their mere presence in a NYCHA building; there must be evidence of prior criminality in the building. Upon determining that an individual is not a resident, an officer is justified in arresting the person if they do not indicate who they are visiting in the building. People v. Ortiz, 2011 NY Slip Op 51036U (Crim. Ct. Kings Cty., 2011) [BR 04] (See also People v. Ventura, 30 Misc. 3d 587 (Sup. Ct., New York Co. 2010)) [BR 05]. NY Penal Law §140.05 states a person is guilty of trespass when he knowingly enters or remains unlawfully in or upon premises [BR 06].

§ 87(2)(g)

§ 87(2)(g)

Consequently, it is therefore recommended that **Allegations A, B, C and D be closed as substantiated.**

• **Allegation E – Discourtesy: PO Eumir Ferrer acted rudely toward** § 87(2)(b)

According to § 87(2)(b) after PO Eumir Ferrer informed her and § 87(2)(b) that they were trespassing and they provided PO Ferrer with their identification, PO Ferrer asked her about the friend she was visiting. After refusing to identify that friend, § 87(2)(b) took her phone out to call her friend. PO Ferrer snatched the phone from § 87(2)(b)'s hand three times and called for additional units to respond to the location.

PO Ferrer stated that § 87(2)(b) was holding her cell phone and spoke into it, but he did not know what she was saying or who she was speaking to. PO Ferrer did not recall grabbing § 87(2)(b)'s cell phone.

PO Gambina did not recall if § 87(2)(b) used her phone during the incident or if PO Ferrer grabbed the phone from her.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation E be closed as unfounded.**

- **Allegation F – Force: PO Eumir Ferrer used physical force against § 87(2)(b)**

§ 87(2)(b) stated that PO Eumir Ferrer returned § 87(2)(b) identification but kept her identification in his possession. Then, § 87(2)(b) proclaimed she was going to smoke a cigarette and proceeded to walk out of the building. As § 87(2)(b) exited the building, PO Ferrer gave § 87(2)(b) a small shove by her shoulders to keep her inside the building.

PO Ferrer stated that § 87(2)(b) tried to walk out of the building at least once. He told her that the officers were not done with the investigation, but he denied pushing her or making any physical contact with her.

PO Gambina stated that § 87(2)(b) never tried to leave. He did not see PO Ferrer push her.

NYPD Patrol Guide §203-11 requires that all officers at the scene of a police incident must use the minimum force necessary to overcome resistance [BR 07].

§ 87(2)(g)

§ 87(2)(g)

Consequently, it is recommended that **Allegation F be closed as exonerated.**

- **Allegation G – Abuse of Authority: PO Eumir Ferrer issued a summons to § 87(2)(b)**

§ 87(2)(b) stated that during the stop, she told the officers that she did not have to tell him where she was coming from, yelled that the officers were harassing her and tried to go outside.

PO Ferrer stated that it was his decision to issue § 87(2)(b) a summons. § 87(2)(b) was very loud and disorderly, refusing his commands. She used profanity, stating, “Fuck this.” She paced back and forth. People started coming down into the lobby area. PO Ferrer stated that he could remember at least one person in the lobby, but was unable to be any more specific.

The summons PO Ferrer issued to § 87(2)(b) for disorderly conduct stated that § 87(2)(b) was observed being loud and boisterous in a NYCHA lobby, thereby causing NYCHA tenants and guests public inconvenience and annoyance.

PO Gambina stated that § 87(2)(b) was angry and irate. She cursed at a high volume and paced back and forth. No other civilian entered the lobby during the stop.

In order for an individual to be guilty of disorderly conduct, there must be evidence that the individual’s actions were intended to provoke an incident involving a larger number of individuals. People v. Gonzales NY Slip Op 05515 (2015) [BR 08].

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

[Redacted] It is therefore recommended that **Allegation G** be closed as **substantiated**.

- § 87(4-b) § 87(2)(g) [Redacted]
[Redacted]
 - [Redacted]
[Redacted]
- [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 3

Investigator:	_____	_____	_____
	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date